

25NNCV03013 25NNCV03013

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-10

Motion: MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO DEFENDANT'S FIRST SET OF SPECIAL INTERROGATORIES

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Case Number: 25NNCV03013 Hearing Date: July 10, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

ANNE CHO,

Plaintiff(s),

vs.

CITY OF
ALHAMBRA, et al.,

Defendant(s).

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CASE NO.: 25NNCV03013

[TENTATIVE]

ORDER RE: MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO
DEFENDANT'S FIRST SET OF SPECIAL INTERROGATORIES

Dept.

3

8:30

a.m.

July 10,
2026

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Defendant City of Alhambra ("City")

moves for an order compelling plaintiff Anne Cho ("Plaintiff") to provide further responses to Special Interrogatories (Set One) No. 16. This interrogatory asks Plaintiff to identify each primary care physician ("PCP") she has had in the 10 years prior to the Incident to the present.

In opposition, Plaintiff argues that

the identity of her past and present PCPs invades her right to privacy and that City's interrogatory will cause an unlimited inquiry into her entire medical history. Plaintiff also argues that the discovery is unnecessary because she

has already stated in her discovery responses that she did not have any similar pre-existing conditions. Plaintiff further contends that Defendant failed to adequately meet and confer.

On reply, City argues that the identity of her past and present PCPs is relevant and reasonably calculated to lead to the discovery of admissible evidence because City can then subpoena her medical records from her PCPs. City states that any subpoena will be limited to those records that involve the body parts at issue in this litigation, but that no subpoenas can be issued unless the identities of those PCPs are provided. City also argues that it adequately met and conferred prior to bringing this motion because Plaintiff's counsel failed to respond to its meet and confer letter dated February 17, 2026, and Defendant was forced to bring its motion by February 23, 2026.

There is not an egregious invasion of privacy every time there is a request for private information and courts must "place the burden on the party asserting a privacy interest to establish its extent and seriousness of the prospective invasion." (Williams v. Superior Court (2017) 3 Cal.5th 531, 557.) Here, Plaintiff has not demonstrated that providing the names of her PCPs will result in a serious invasion of privacy. When a plaintiff puts her health and physical condition at issue, the privacy and privileges that normally attach to such sensitive information are "substantially lowered by the very nature of the action." (Heller v. Norcal Mutual Ins. Co. (1994) 8 Cal.4th 30, 43.)

Accordingly, the motion to compel a further response is GRANTED and Plaintiff is ordered to serve a further response to Special Interrogatory No. 16 within 20 days of the date of this order.

Dated
this 10th
day of July 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.